	MEMORANDUM CIRCULAR	DOCUMENT NO. BJMP-DPRM-MC NO. 73
	TOPIC **PERSONNEL HOLDING AND ACCOUNTING SECTION OF THE JAIL BUREAU**	ISSUE NO. 1
		REVISION NO.
	SUB-TOPIC **Guidelines on the Establishment and Management of PHAS**	EFFECTIVE DATE 16 AUG 2019
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1.0. REFERENCES

1.1. 1987 Philippine Constitution;
1.2. CSC Memorandum Circular No. 21 s, 2002 re: Policies on Detail;
1.3. Personnel Directive No. 2012-02 dated 13 June 2012 re: Guidelines on the Detail of an Aide-de-Camp and Personnel as Security-Driver;
1.4. Memorandum Dated 23 April 2013 re: Detail of Personnel with Former Chiefs of the BJMP and to Regional Directors as Security Driver;
1.5. Memorandum Circular No. 2014-007 dated 05 August 2014 re: Guidelines in the Assignment of BJMP Personnel as Aide-De-Camp and Security/Liaison Officer;
1.6. Guidelines on the Detail of BJMP Personnel with Former Chiefs of the BJMP;
1.7. Memorandum Circular No. 2015-006 dated 13 November 2015 re: Policy Guidelines in the Assignement of BFP Personnel as Aide-De-Camp and Security/Liaison Officer;
1.8. CSC Memorandum Circular No. 24 s, 2017 re: 2017 Omnibus Rules on Appointments and Other Human Resource Actions; and
1.9. BJMP-DPRM MC No. 35 re: Revised Policy on the Status of Retiring Personnel Six (6) Months before Actual Date of Retirement.

2.0. RATIONALE

It has been noted that despite issuance of directives to enforce monitoring of personnel who are on detail service, on floating status, light duty status, under preventive suspension and those already suspended, there is failure to achieve the objective sought by the said directives.

This scenario does not only impede the delivery of our services by maximizing our personnel resource but likewise, runs afoul to the provision of the Constitution which declares that "Public Office is a Public Trust. **Public** officers and employees must at all times be **accountable** to the people".

It must be remembered that employment in the government service is a mere privilege, thus, every official and employee of any government agency is expected to faithfully discharge the duties and functions of its office efficiently and to the highest standard of public service.

Towards this end, the Bureau hereby establishes a Personnel Holding and Accounting Section (PHAS) under the Administrative, Appointments and Other Human Resource Action Division (AAOHRAD) of the Directorate for Personnel and Records Management (DPRM) to effectively address related concerns.

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3.0. DEFINITION OF TERMS – As used in this guideline, unless the context indicates otherwise, the following terms shall have the following import:

FLOATING STATUS – refers to a situation where a BJMP personnel by reason of pending administrative and/or criminal case, is temporarily placed out of actual work; usually done through reassignment to the office of the Chief, BJMP or Office of the Regional Director as the case may be.

LIGHT DUTY STATUS – refers to the status of a retiring employee or those who are physically incapacitated whereby he/she is designated/placed in a position which is purely administrative in function or assignment at all levels.

PREVENTIVE SUSPENSION – refers to a measure of precaution so that the respondent may be removed from the scene of the alleged malfeasance/misfeasance/nonfeasance while the case is being investigated.

DETAIL – temporary movement of employee from one department or agency to another and to any individual which does not involve a reduction in rank, status or salary, nor the issuance of an appointment.

SECURITY/DRIVER – the person who has control in the operation of a motor vehicle and responsible for the safety of other person/s while en route.

MOTHER UNIT – refers to the office/unit of the Bureau of Jail Management and Penology (BJMP) originally exercising administrative supervision over the employee prior to his/her detail.

4.0. OBJECTIVES

4.1. This policy aims to establish and implement an effective and efficient personnel accounting system in the BJMP and to provide appropriate measures to ensure the maximum use of our human resource.

4.2. This policy is specifically created to govern the conduct of all BJMP personnel who were placed on detailed service, on floating status, light duty status, under preventive suspension and those already suspended.

5.0. SPECIFIC GUIDELINES

5.1. The Personnel Holding and Accounting Section (PHAS) is hereby created under the Administrative, Appointments and Other Human Resource Actions Division (AAOHRAD) of the Directorate for Personnel and Records Management at the NHQ.

5.2. In the Regional Offices, the AAOHRAS under the Personnel and Records Management Division shall perform the duties and responsibilities of the PHAS to ensure proper monitoring of personnel assigned in the region.

5.3. The Personnel Holding and Accounting Section (PHAS) shall exercise administrative functions over the following:

5.3.1. All personnel on detail with other government agencies;

5.3.2. Those on detail as drivers or security/liaison officer/s to retired Jail Director and Jail Chief Superintendents;

5.3.3. Those charged with criminal, civil or administrative cases as recommended by the Legal Service Office, until the same is dismissed in his/her favor;

5.3.4. Those who are under preventive and serving suspension as penalty until the same is terminated;

5.3.5. Those placed on Light Duty Status (LDS) six (6) months prior to the effectivity of the actual date of his/her retirement;

5.3.6. Those who have no designation or on floating status; and

5.3.7. Those who are on schooling until the termination of the same.

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5.4. Evaluate requests for detail of personnel or requests for extension of an existing detail service and submit the same with recommendation for approval/disapproval of the Chief, BJMP;

5.5. Recommend to the National Human Resource Merit Selection and Placement Board (NHRMSPB) the placement/assignment of personnel whose detail with other government agencies have been terminated, those whose cases have been dismissed or suspensions have been served.

5.6. Monitor the expiration of the detail of personnel and order the recall of such personnel whose detail has expired and has not been renewed;

5.7. Conduct personnel accounting in different offices/units as need arises;

5.8. Regularly coordinate with the Finance Service Office the addition and deletion of personnel entered in monthly pay roll; and

5.9. Maintain database of personnel who were in detail service, on floating status, light duty status, under preventive suspension and those already suspended.

5.10. All personnel who are on floating status, light duty status, under preventive suspension assigned in the National Headquarters and those in the Regional Offices as the case may be are required to report daily. Their attendance shall be monitored by the PHAS.

5.11. All order placing a BJMP personnel on detail service must emanate from the National Headquarters, thus, in the case of personnel assigned in the Regional Office, request for detail service, must be forwarded to the National Headquarters for approval pursuant to the Bureau's guidelines in detail service.

5.12. Personnel on detail service must attend the annual accounting of personnel and are required to attend flag raising ceremony every first Monday of the month. In case of non- attendance due to sickness and other meritorious cases, proof to such effect must be provided.

5.13. The PHAS of the Directorate for Personnel and Records Management (DPRM) shall maintain a database of those personnel placed on detail service, on floating status, light duty status, under preventive suspension and those already suspended.

5.14. Likewise, the PHAS shall monitor the whereabouts of all personnel on detail service, on floating status, light duty status, under preventive suspension and those already suspended.

6.0. ADMINISTRATION/MONITORING

The Directorate for Personnel and Records Management shall be responsible in the effective implementation of this Circular.

7.0. SEPARABILITY CLAUSE

In any event that any provision or part of this policy be declared unauthorized, unconstitutional or declared invalid by a competent authority, provisions not affected by such declaration shall remain valid and effective.

8.0. REPEALING CLAUSE

All other issuances which are inconsistent with this policy are hereby rescinded or modified accordingly.

9.0. EFFECTIVITY

This Circular shall take effect fifteen (15) days following the filing of a copy hereof at the University of the Philippines Law Center in consonance with Section 3 and 4, Chapter 2, Book VII of Executive Order No. 292, otherwise known as "The Revise Administrative Code of 1987".

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